



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Economic Resource Administrator
DATE: AUGUST 7, 2024
SUBJECT: GRANT AGREEMENT BETWEEN THE US ENDOWMENT FOR FORESTRY AND COMMUNITIES INNOVATIVE FINANCE FOR NATIONAL FORESTS GRANT AND THE CITY OF CHEYENNE

The City of Cheyenne in partnership with the Cheyenne Board of Public Utilities has been working collaboratively with various public and private agencies to protect our source water and reduce wildfire risk. Partners include the US Forest Service, National Forest Foundation, Wyoming Association of Rural Water Systems, World Resources Institute, and the town of Encampment.

Catastrophic wildfire risk in the Medicine-Bow National Forest endangers water sources for local communities, including the cities of Cheyenne and Encampment. Funding and capacity constraints at the USFS limit its ability to rapidly address this risk. The partners are exploring the first-of-its-kind use of Wyoming State Revolving Fund Loans to finance large-scale forest restoration. To evaluate the feasibility of the model, this grant will provide funds to support collaboration, community engagement, and legal services to determine the feasibility of using the State's RLF to finance forest restoration in the Medicine Bow-Routt National Forests & Thunder Basin National Grassland (MBRTB).

This innovative pilot could revolutionize national forest management funding strategies by building on the 2010 initiative by Arizona's Salt River Project, which similarly used these loans for watershed and forest conservation to protect against wildfire risks. Given the age of this precedent, a renewed proof of concept is crucial to demonstrate the current applicability and benefits of such funding strategies, potentially encouraging their broader adoption across the U.S.

This pilot project targets two major funding issues in the MBRTB: (1) USFS's budget shortfall for vegetation management to mitigate wildfire risks, and (2) the limited financial capabilities of nearby communities to match USFS funding. Despite the allocation of nearly \$500 million from the Wildfire Crisis Strategy to various western US forests for 2024 (USDA), Wyoming's forests were not identified as priority areas. This omission limits USFS's ability to mitigate wildfire threats and protect essential infrastructure used by municipalities, water utilities, and communities. Additionally, adjacent communities lack the resources or personnel needed to supplement federal funds or underpin large-scale loans. By accessing WSRFs for forest restoration and designing appropriate cost-share agreements with the USFS, we aim to overcome these financial hurdles by unlocking large-scale funding with guaranteed repayment streams that can enhance landscape resilience for smaller communities.

The MBRTB spans 2.2 million acres, with 40% classified as high fire hazard. The Landscape Vegetation Analysis (LaVA) project aims to implement 288,000 acres of vegetation management across the MBRTB to enhance ecosystem resilience, safeguard critical drinking water sources, and protect communities. Capacity and funding have limited the USFS to about 4,000 acres per year. At this rate, 80% of the approved treatments

will not be completed by 2035. With the increased risk of large-scale wildfire, there is a need to increase the pace and scale of implementation. In fact, Encampment's source water protection plan highlights that fire is one of the highest risks associated with Encampment's watershed. To do this, the USFS needs to increase agency and partner capacity and unlock innovative financing instruments. By accessing WSRF funds, large-scale financing can be unlocked upfront to support partnership planning, implementation, and monitoring for LaVA.

Grant Award: \$250,000; project budget \$310,000 which includes in kind match through staff time

Period of Performance: November 1, 2024 – October 31, 2026

Please contact me if you would like more information about this partnership and project, rsmith@cheyennecity.org or (307) 637-6285

**UNITED STATES ENDOWMENT FOR FORESTRY AND COMMUNITIES
SUBRECIPIENT AGREEMENT 24-00799**

APPROVED as to form only:
By Stefanie Boster at 10:12 am, Aug 08 2024

PROJECT: Protecting Source Water & Reducing Wildfire Risk for Rural Communities: An Innovative Finance Pilot in Wyoming

SUBRECIPIENT: City of Cheyenne

ORGANIZATION TYPE: State/Municipality

PERIOD OF PERFORMANCE: November 1, 2024 to October 31, 2026

PROJECT DESCRIPTION: This project will pilot the potential use of the Wyoming State Revolving Loan Fund program to finance forest restoration activities on the Medicine Bow-Routt National Forests and Thunder Basin National Grassland. State Revolving Loan Funds offer favorable terms for municipalities to fund water quality treatments and wildfire prevention activities. This arrangement can allow local communities to implement essential interventions they otherwise might not be able to afford.

AWARD: \$250,000.00

FUNDING SOURCE(S):

Funding Source Name	Amount	Assistance Listing # (Certain Federal Awards Only)
Forest Service 22-CS-11132420-236	\$250,000.00	

The United States Endowment for Forestry and Communities (“Endowment”) agrees to provide the Award to the Subrecipient for the purposes of satisfactorily performing the Project described in the **Work Plan** and **Budget** as found in Appendix A and C. Project must be completed, with all funds spent, during the Period of Performance as set forth above. The Award is provided on the condition that the Subrecipient agrees that it will raise and spend at least \$60,000.00 in Matching Contributions on the Project. Project must be completed, with all matching contributions spent, during the Period of Performance as set forth above.

SUBRECIPIENT CONTACT INFORMATION

Subrecipient Name: Renee Smith
Subrecipient Organization: City of Cheyenne
Subrecipient Address: 2101 O'Neil Avenue
Cheyenne, Wyoming 82001
Subrecipient Phone: (307) 637-6285
Subrecipient Email: rsmith@cheyennecity.org

ENDOWMENT ADMINISTRATIVE CONTACT INFORMATION

Endowment Administrator: Aleta Rogers
Endowment Address: 10 S. Academy St Suite 101
Greenville, SC 29601
Endowment Phone: 864-233-7646
Endowment Email: aleta@usendowment.org

ENDOWMENT TECHNICAL CONTACT INFORMATION

Endowment Program Officer: Peter Stangel
Endowment Address: 10 S. Academy St Suite 101
Greenville, SC 29601
Endowment Phone: 864-233-7646
Endowment Email: peter@usendowment.org

To the extent possible, all communication should take place electronically via the address provided above. Please reference the project number, 24-00799, in any communication.

TERMS AND CONDITIONS

1. **Payment of Funds**: The Endowment will reimburse Subrecipient for allowable costs in the performance of this Subaward. Such reimbursement shall not exceed the Award identified above, as detailed in the Budget in Appendix C.
 - a. To be eligible to receive Funds, the Subrecipient must 1) return to the Endowment an original executed copy of the Agreement for the Project; 2) submit any due financial and programmatic reports; and 3) submit a complete and accurate payment request. Subrecipient may request advance payment of funds prior to expenditure provided that 1) Subrecipient demonstrates an immediate need for advance payment; and 2) Subrecipient documents expenditure of advanced funds on the next payment request and/or required financial report to the Endowment. Approval of advance payment of Funds is made at the sole discretion of the Endowment, based on an assessment of the Subrecipient's needs. In all other cases, Funds are disbursed on a reimbursable basis. The

Endowment reserves the right to retain up to ten percent (10%) of Funds until submission and acceptance of the Final Reports.

- b. Payments by the Endowment to the Subrecipient shall be made upon receipt and approval of invoices from the Subrecipient. Invoices shall be submitted by the Subrecipient no more frequently than quarterly, with the final invoice to be submitted no later than thirty (30) days following the expiration date of the Period of Performance. Invoices shall show current claim and cumulative expenses incurred to date, by budget category. All invoices should be submitted via the Endowment's online portal <https://usendowment.my.site.com/grantee>. For any questions on using the portal or if you need access, please contact subawards@usendowment.org and include your project number.
2. **Restrictions on Use of Funds:** No Funds provided by the Endowment pursuant to this Agreement may be used to support litigation expenses, lobbying activities, terrorist activities, or activities in violation of the Foreign Corrupt Practices Act. Overhead and indirect costs must comply with the Endowment's [Indirect Cost Rate Policy](#). Travel costs must comply with the [Endowment's Travel Policy](#).
3. **Amendments:** During the term of the Project, the Subrecipient is required to inform the Endowment Contact of any changes in contact information, any difficulties in completing the Project by the end of the Period of Performance, or any difficulties in submitting reports by their due dates. Any modifications to the scope of the Project must be agreed to in writing by the Endowment and the Subrecipient prior to the change. If the Subrecipient determines that a change exceeding ten percent (10%) in any one budget category is required, the Subrecipient must seek approval from the Endowment Grant Administrator. Amendment requests should be initiated by the Subrecipient upon determination of a deviation from the original Agreement. All amendment requests must be submitted via the Endowment's online portal at portal <https://usendowment.my.site.com/grantee>. The Endowment may initiate the amendment if the Endowment determines an amendment is necessary.
4. **Termination:** Failure by the Subrecipient to comply with any material term of this Agreement shall be deemed to be a breach of this Agreement and constitute cause for the Endowment to terminate the Agreement by written notice to the Subrecipient and to pursue any legal remedy to which the Endowment may be entitled. For purposes of this paragraph, failure to perform those activities described in the Project Description and Scope of Work—Appendix A will be considered a material breach and could result in termination.

The Subrecipient may terminate this Agreement by written notice to the Endowment. In the event of termination of this Agreement prior to Project completion, the Subrecipient shall immediately (unless otherwise directed by the Endowment in its notice if the Endowment initiated the termination) undertake all reasonable steps to conclude the Project cooperatively with the Endowment, including but not limited to the following:

- a. Stop any work that is incomplete (unless work to be completed and a different date for termination of work are specified in the Endowment's notice);
- b. Place no further work orders or enter into any further subawards or subcontracts for materials, services, or facilities, except as necessary to complete work as specified in the Endowment's notice;
- c. Terminate all pending Project work orders, subawards, and subcontracts for work that has not yet been commenced;
- d. With the prior written consent of the Endowment, promptly take all other reasonable and feasible steps to minimize and/or mitigate any damages that may be caused by the failure to complete the Project, including but not limited to reasonable settlements of any outstanding claims arising out of the termination of the Project work orders, subawards, and subcontracts;
- e. Deliver or make available to the Endowment all data, drawings, specifications, reports, estimates, summaries, and such other information and material as may have been accumulated by the Subrecipient under this Agreement, whether completed or in progress;
- f. Return to the Endowment any unobligated portion of the Award.

ENDOWMENT PROCESS

5. Reporting Requirements:

- a. Interim Reports: The Subrecipient will submit a concise interim, Semiannual report to the Endowment based on the schedule below.
- b. Final Reports: No later than thirty (30) days after the completion of the Project, the Subrecipient will submit 1) a Final Financial Report accounting for all Project receipts, Project expenditures, and any Budget variances; 2) a final, concise programmatic report summarizing and evaluating the accomplishments achieved during the Period of Performance; and 3) copies of any publications, press releases, and other appropriate products resulting from the Project.
- c. Report Submission: All reports will be submitted via the Endowment's online portal <https://usendowment.my.site.com/grantee>. For any questions on using the portal or if you need access, please contact subawards@usendowment.org and include your project number.
- d. Requests for Extension: Any request for an extension of any of these reporting requirements must be made in writing to the Endowment Contact and approved by the Endowment in advance.
- e. Reporting Due Dates:

Due Date	Report Type
November 30, 2024	Interim Report
May 30, 2025	Interim Report
November 30, 2025	Interim Report
May 30, 2026	Interim Report

6. **Matching Contributions:** Matching Contributions consist of cash, contributed goods and services, volunteer hours, and/or property raised and spent for the Project. Matching Contributions for the purposes of this Project must meet the following criteria: 1) Matching Contributions must be committed directly to the Project and must be used within the Period of Performance or as modified through agreement with the Endowment; and 2) Matching Contributions must be voluntary in nature. Funds presented for fulfillment of mitigation, restitution, or other permit or court-ordered settlements are not eligible.

REPRESENTATIONS, CERTIFICATIONS, AND OTHER

7. **Binding Obligations:** This Agreement has been duly executed by a representative of the Subrecipient with full authority to execute this Agreement and bind the Subrecipient to the terms hereof. After execution by the representative of the Subrecipient named on the signature page hereto, this Agreement will represent the legal, valid, and binding obligation of the Subrecipient, enforceable against the Subrecipient in accordance with its terms.
8. **Assignment; Subawards and Subcontracts:** The Subrecipient may not assign this Agreement, in whole or in part, to any other individual or other legal entity without the prior written approval of the Endowment. The Subrecipient may not provide subawards nor enter into subcontracts without the prior written approval of the Endowment. Subawards and subcontracts with known parties disclosed in the proposal budget are deemed to be approved.
9. **Unexpended Funds:** Any Funds provided by the Endowment and held by the Subrecipient and not expended at the end of the Period of Performance will be returned to the Endowment within ninety (90) days after the end of the Period of Performance.
10. **Additional Support:** In making this Award, the Endowment assumes no obligation to provide further funding or support to the Subrecipient beyond the terms stated in this Agreement.
11. **Publicity and Acknowledgement of Support:** The Subrecipient agrees to give appropriate credit to the Endowment and other funders for their financial support in any and all press releases, publications, annual reports, signage, video credits, dedications, and other public communications regarding this Agreement. The Subrecipient will refer to the Endowment in such acknowledgements as follows:

The United States Endowment for Forestry and Communities, Inc. (the "Endowment") is a not-for-profit corporation that works collaboratively with partners in the public and private sectors to advance systemic, transformative and sustainable change for the health and vitality of the nation's working forests and forest-reliant communities.

Both parties agree to obtain prior approval before using the other party's logo and the logo of any funding sources in any public information releases concerning this Award. The Subrecipient also gives the Endowment the right and authority to publicize the Endowment's financial support for this Agreement and the Project in press releases, publications, and other public communications.

12. **Evaluation**: The Subrecipient agrees to cooperate with the Endowment by providing timely responses to all reasonable requests for information to assist the Endowment in evaluating the accomplishments of the Project for a period of five (5) years after the date on which the final financial and programmatic reports are provided.
13. **Arbitration**: All claims, disputes, and other matters in question arising out of, or relating to this Agreement, its interpretation or breach, shall be decided through arbitration by a person or persons mutually acceptable to both the Endowment and the Subrecipient. Notice of the demand for arbitration shall be made within a reasonable time after the claim, dispute, or other matter in question has arisen. The terms of this provision will survive termination of this Agreement.
14. **Indemnity**: Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
15. **Choice of Law**: The Agreement shall remain silent as to choice of law.
16. **Compliance with Laws**: In conducting its activities relating to the Project, the Subrecipient agrees to conduct all such activities in compliance with all applicable Federal, State, and local laws, regulations, and ordinances and to secure all appropriate necessary public or private permits and consents. The terms of this provision will survive termination of this Agreement.
17. **Insurance**: The Subrecipient agrees to obtain and maintain all appropriate insurance against liability for injury to persons or property from any and all activities undertaken by the Subrecipient and associated with this Award in any way.

REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS RELATING TO FEDERAL FUNDS

18. **Federal Provisions:** The Subrecipient must read and understand certain federal regulations, including but not limited to, those identified below which may be located on the Internet at <www.gpo.gov>. Many Federal agencies have agency-specific regulations that govern the issuance of awards and subawards with their funds; it is the obligation of the Subrecipient to review and comply with any such regulations issued by its Federal Agency Funding Source(s). Applicable terms and conditions to this Award—and reference to additional applicable provisions—can be found in **Appendix B, Subaward Terms**.
19. **Federal Cost Principles:** If the Subrecipient is a non-federal organization, it must understand and comply with 2 CFR Part 200 “Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards” as adopted and supplemented by the USDA in 2 CFR Part 400, including, but not limited to: (i) 2 CFR, Part 215 “Uniform Administrative Requirements for Grants and Agreements with Institutions of Higher Education, Hospitals, and Other Non-Profit Organizations” and, (ii) depending on what kind of organization it is, either (a) 2 CFR, Part 220 “Cost Principles for Educational Institutions” or (b) 2 CFR, Part 230 “Cost Principles for Non-Profit Organizations.”
20. **Uniform Guidance Audits:** If the Subrecipient is any type of U.S organization and its expends an aggregate of \$750,000 or more from all Federal sources in a fiscal year, it is subject to a special audit as detailed in 2 C.F.R. Part 200, Subpart F, “Audit Requirements” which it will need to understand and comply with, in addition to other applicable Federal regulations detailed in Appendix B Section 7.
21. **Subrecipient Lobbying:** The Subrecipient agrees, to the best of his or her knowledge and belief, that:
 - a. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering of any cooperative agreement, and the extension, continuation, renewal, amendment or modification of any Federal contract, grant, loan, or cooperative agreement.
 - b. If any funds other than Federal appropriated funds have been paid or will be paid to any person influencing or attempting to influence an officer or employee of any agency or a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, “Disclosure Form to Report Lobbying,” in accordance with its instructions.

- c. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.
22. **Subrecipient Debarment and Suspensions**: The Subrecipient shall enter into no contract or subcontract using Federal funds provided by the Endowment with any party listed on the General Services Administration's List of Parties Excluded from Federal Procurement or Nonprocurement Programs in accordance with Executive Orders 12549 and 12689 (Debarment and Suspension).
23. **Rights to Inventions**: If applicable to this Project, the Subrecipient shall abide by the provisions of 37 CR Part 401 (Rights to Inventions Made by Non-Profit Organizations and Small Business Firms Under Government Grants, Contracts, and Cooperative Agreements) and any implementing regulations issued by the Federal agency that provided funds for this Agreement.

Signature page follows

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement, intending to be bound legally.

UNITED STATES ENDOWMENT FOR FORESTRY AND COMMUNITIES

Name:

Title:

Date: _____

City of Cheyenne

Name:

Title:

Date: _____

APPENDIX A—WORK PLAN

Work Plan Activity	Description	End Date
Activity 1: Establish the IFNF project team	We will establish a project management team with key milestones and roles/responsibilities delineated to: 1) address community concerns and clarify the feasibility of the SRF model in the first year; and 2) draft and submit a SRF application for December of 2025, assuming principal repayment is confirmed. The project team will be led by a “Community Coordinator” (Coordinator) contracted by the City of Cheyenne and hosted at NFF or another external entity. Key partners include BOPU, Town of Encampment, Cheyenne Fire Rescue, Laramie County Fire Authority, WARWS, WRI, and NFF. Additional partnerships with local organizations and other communities will be explored. Deliverable: Gantt chart delineating key milestones and roles proposed for year one.	December 31, 2024
Activity 3: Conduct an SRF Feasibility Analysis	Assess the feasibility of accessing WSRF loans, such as confirming repayment for SRF loans through USFS cost-share and/or other mechanisms. Meet with relevant offices, such as the Wyoming OSLI office, USFS National Partnership Office (NPO), and legal attorneys to structure the financial and legal mechanisms that would be needed for the SRF loan. Encampment would need to submit the project in January 2025 in order for it to be incorporated in the 2026 CWSRF Intended Use Plan. Deliverable: Feasibility analysis outlining the repayment options including levels of certainty	December 1, 2025

	and associated risk that inform the ability to move to the SRF application preparation (See activity 5).	
Activity 5: SRF Application Preparation	If successful in the first year at addressing identified community concerns, the partners will begin to prepare the application for WSRF loans. Loan applications must be reviewed by the State Loans Investment Board, with the applicant sent at least 120 days prior to any regularly scheduled meeting (held every other month). Thus, an application submitted in December 2025 would be voted on by April 2026. Encampment would be the loan borrower and BOPU would be the loan administrator. Several timelines are out of our direct control that potentially could extend the time frame for proposal development. Deliverable: Submit an SRF application in December of 2025 to the Wyoming State Loans Investment Board.	December 15, 2025
Activity 4: SRF Guidance Document for Small Communities	Develop a guidance document that captures key lessons learned from Activities 1-3 thus far, offering a roadmap to replicate and amplify the exploration of SRFs for small communities across additional projects or geographies. This document will recognize the IFNF's impact in helping to evaluate how smaller communities can use SRFs to fund forest restoration to reduce risk and increase resiliency. Deliverable: Guidance document highlighting key lessons learned.	February 28, 2026
Activity 2: Community engagement with Encampment and other communities	There are over 50 municipal and community public water systems serving communities (including Cheyenne, Encampment, Saratoga, Laramie, Riverside and Centennial) within and downstream from the Medicine Bow National Forest. Receiving input and support from local communities and stakeholders is critical to the success of the SRF application. Thus, thoughtful engagement with Encampment, led	March 1, 2026

	by the Coordinator, will help facilitate relationship building and address concerns. This includes but is not limited to recurring meetings, field visits, and workshops. The grant will help pay for the time of Cheyenne Fire Rescue and Laramie County Fire Authority staff to attend these workshops in-person to strengthen relationship building. Deliverable: A support letter or MOU signed by all communities that are supportive and interested in exploring SRFs.	
Activity 6: SRF Loan Administration	The process of approval and allocation for SRF loans can take up to 4-6 months following the submission of a comprehensive application. If the application is submitted in December 2025, the Board would vote to approve it by April of 2026, with about 1-2 months of time required for disbursement to begin. Upon approval, BOPU, in collaboration with Encampment and other key stakeholders, will undertake the task of administering SRF loans to fund critical on-the-ground restoration projects. Deliverable: Distribution of SRF loan funds to Encampment, facilitated by BOPU, and later distributed to on-the-ground restoration.	October 31, 2026

APPENDIX B – SUBAWARD TERMS AND CONDITIONS

Section I: Title and Description

Title of Subaward Project	Protecting Source Water & Reducing Wildfire Risk for Rural Communities: An Innovative Finance Pilot in Wyoming
Subaward Project Description	This project will pilot the potential use of the Wyoming State Revolving Loan Fund program to finance forest restoration activities on the Medicine Bow-Routt National Forests and Thunder Basin National Grassland. State Revolving Loan Funds offer favorable terms for municipalities to fund water quality treatments and wildfire prevention activities. This arrangement can allow local communities to implement essential interventions they otherwise might not be able to afford.

Section II: Subrecipient Information

Subrecipient Name	City of Cheyenne
Subrecipient UEI Number	KURKMKZUFMY2
Subaward period of performance	November 1, 2024 - October 31, 2026
Federal Funds to Subrecipient from Awarding Agency	\$250,000.00
Endowment (Non-Federal) Funds to Subrecipient	\$0.00
Subaward Total	\$250,000.00
Subrecipient's ICR	10%

Section III: Federal Disclosure Requirements

Awarding Agency	Forest Service
Pass-through Entity	United States Endowment for Forestry and Communities
Awarding Official	
FAIN, Assistance ID Number	22-CS-11132420-236
R&D Subaward?	Yes
Federal Award Date	July 29, 2022
Total Federal Award to Endowment	\$3,931,000.00
Federal Award Project	Partnership to Accelerate Pace and Scale of Land

Description	Management and Restoration
Assistance Listing Number	

Federal Disclosure Requirements Flow Down Requirements *(the term “Recipient” refers to the Subrecipient entity identified on the first page of this Agreement, where applicable)*

- 1. Drug-Free Workplace**
 - 2. Lobbying and Litigation**
 - 3. Trafficking in Persons**
 - 4. Reporting Subawards and Executive Compensation**
 - 5. Management Fees**
 - 6. Procurement Standards**
 - 7. Other Federally Mandated Contract Provisions**
-

1. Drug-Free Workplace

1.1 The recipient organization of this federal assistance agreement must make an ongoing, good faith effort to maintain a drug-free workplace pursuant to the specific requirements set forth in Title 2 CFR Part 421. Additionally, in accordance with these regulations, the recipient organization must identify all known workplaces under its federal awards and keep this information on file during the performance of the award.

1.2 Those recipients who are individuals must comply with the drug-free provisions set forth in Title 2 CFR Part 421 Subpart C. The consequences for violating this condition are detailed under Title 2 CFR Part 421 Subpart E.

2. Lobbying and Litigation

All Recipients.

2.1.1. The chief executive officer of this recipient agency shall ensure that no grant funds awarded under this assistance agreement are used to engage in lobbying of the Federal Government or in litigation against the U.S. unless authorized under existing law. The recipient shall abide by their respective Cost Principles (OMB Circulars A-21, A-87 and A-122), which generally prohibits the use of federal grant funds for litigation against the U.S. or for lobbying or other political activities.

2.1.2. The recipient agrees to comply with Title 2 CFR Part 418, New Restrictions on Lobbying. The recipient shall include the language of this provision in award documents for all subawards exceeding \$100,000, and require that subrecipients submit certification and disclosure forms accordingly.

2.1.3. In accordance with the Byrd Anti-Lobbying Amendment, any recipient who makes a prohibited expenditure under 2 CFR Part 418 or fails to file the required certification or lobbying forms shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such expenditure.

3. Trafficking in Persons

Provisions applicable to a recipient that is a private entity.

3.1.1. The recipient, the recipient’s employees, subrecipients under this award, and subrecipients’ employees may not—

3.1.1.1. Engage in severe forms of trafficking in persons during the period of time that the award is in effect;

3.1.1.2. Procure a commercial sex act during the period of time that the award is in effect; or

3.1.1.3. Use forced labor in the performance of the award or subawards under the award.

3.1.2. We as the Federal awarding agency may unilaterally terminate this award, without penalty, if the recipient or a subrecipient that is a private entity —

3.1.2.1. Is determined to have violated a prohibition in paragraph 3.1 of this award term; or

3.1.2.2. Has an employee who is determined by the agency official authorized to terminate the award to have violated a prohibition in paragraph 3.1 of this award term through conduct that is either—

3.1.2.2.1. Associated with performance under this award; or

3.1.2.2.2. Imputed to the recipient or subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 2 CFR part 180, “OMB Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement),”

Provisions applicable to any recipient.

3.3.1. The recipient must inform the federal awarding agency immediately of any information received from any source alleging a violation of a prohibition in paragraph 3.1.1 of this award term.

3.3.2. Our right to terminate unilaterally that is described in paragraph 3.1.2

3.3.2.1. Implements section 106(g) of the Trafficking Victims Protection Act of 2000 (TVPA), as amended (22 U.S.C. 7104(g)), and

3.3.2.2. Is in addition to all other remedies for noncompliance that are available to us under this award.

3.3.3. The recipient must include the requirements of paragraph 3.1 of this award term in any subaward made to a private entity.

Definitions. For purposes of this award term:

3.4.1. “Employee” means either:

3.4.1.1. An individual employed by you or a subrecipient who is engaged in the performance of the project or program under this award; or

3.4.1.2. Another person engaged in the performance of the project or program under this award and not compensated by you including, but not limited to, a volunteer or individual whose services are contributed by a third party as an in-kind contribution toward cost sharing or matching requirements.

3.4.2. “Forced labor” means labor obtained by any of the following methods: the recruitment,

harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

3.4.3. “Private entity”:

3.4.3.1. Means any entity other than a State, local government, Indian tribe, or foreign public entity, as those terms are defined in 2 CFR 175.25.

3.4.3.2. Includes:

3.4.3.2.1. A nonprofit organization, including any nonprofit institution of higher education, hospital, or tribal organization other than one included in the definition of Indian tribe at 2 CFR 175.25(b).

3.4.3.2.2. A for-profit organization.

3.4.4. “Severe forms of trafficking in persons,” “commercial sex act,” and “coercion” have the meanings given at section 103 of the TVPA, as amended (22 U.S.C. 7102).

4. Reporting Subawards and Executive Compensation

4.1. Reporting of first-tier subawards.

4.1.1. Applicability. Unless the recipient is exempt as provided in paragraph 4.4. of this award term, the recipient must report each action that obligates \$25,000 or more in Federal funds that does not include Recovery funds (as defined in section 1512(a)(2) of the American Recovery and Reinvestment Act of 2009, Pub. L. 111-5) for a subaward to an entity (see definitions in paragraph 4.5 of this award term).

4.1.2. Where and when to report. (1) The recipient must report each obligating action described in paragraph 4.1.1 of this award term to www.fsrs.gov. (2) For subaward information, report no later than the end of the month following the month in which the obligation was made. (For example, if the obligation was made on any date during the month of November of a given year, the obligation must be reported by no later than December 31 of that year.)

4.1.3. What to report. The recipient must report the information about each obligating action as described in the submission instructions available at: <http://www.fsrs.gov>.

4.2. Reporting Total Compensation of Recipient Executives.

4.2.1. Applicability and what to report. The recipient must report total compensation for each of their five most highly compensated executives for the preceding completed fiscal year, if:

4.2.1.1. the total Federal funding authorized to date under this award is \$25,000 or more;

4.2.1.2. in the preceding fiscal year, the recipient received:(i.) 80 percent or more of their annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); (ii.) and \$25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); and

4.2.1.3. The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)) or section 6104 of

the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at <http://www.sec.gov/answers/execomp.htm>.)

4.2.2. Where and when to report. The recipient must report executive total compensation described in paragraph 4.2.1 of this award term: (i.) As part of the registration Central System for Award Management profile available at www.sam.gov. (ii.) By the end of the month following the month in which this award is made, and annually thereafter.

4.3. Reporting of Total Compensation of Subrecipient Executives.

4.3.1. Applicability and what to report. Unless exempt as provided in paragraph 4.4. of this award term, for each first-tier subrecipient under this award, the recipient shall report the names and total compensation of each of the subrecipient's five most highly compensated executives for the subrecipient's preceding completed fiscal year, if:

4.3.1.1. in the subrecipient's preceding fiscal year, the subrecipient received: (i.) 80 percent or more of its annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); and (ii.) \$25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts), and Federal financial assistance subject to the Transparency Act (and subawards); and

4.3.1.2. The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at <http://www.sec.gov/answers/execomp.htm>.)

4.3.2. Where and when to report. The recipient must report subrecipient executive total compensation described in paragraph 4.3.1. of this award term:

4.3.2.1. To the recipient.

4.3.2.2. By the end of the month following the month during which the recipient makes the subaward. For example, if a subaward is obligated on any date during the month of October of a given year (i.e., between October 1 and 31), the recipient must report any required compensation information of the subrecipient by November 30 of that year.

4.4. Exemptions

4.4.1. If, in the previous tax year, the recipient had gross income, from all sources, under \$300,000, the recipient is exempt from the requirements to report:

4.4.1.1. subawards, and the total compensation of the five most highly compensated executives of any subrecipient.

4.5. Definitions. For purposes of this award term:

4.5.1. Entity means all of the following, as defined in 2 CFR part 25: (i.) A Governmental organization, which is a State, local government, or Indian tribe; (ii.) A foreign public entity; (iii.) A domestic or foreign nonprofit organization; (iv.) A domestic or foreign for-profit organization; (v.) A Federal agency, but only as a subrecipient under an award or subaward to a non-Federal entity.

4.5.2. Executive means officers, managing partners, or any other employees in management positions.

4.5.3. Subaward:

4.5.3.1. This term means a legal instrument to provide support for the performance of any portion of the substantive project or program for which you received this award and that the recipient award to an eligible subrecipient.

4.5.3.2. The term does not include procurement of property and services needed to carry out the

project or program (for further explanation, see Sec. __.210 of the attachment to OMB Circular A-133, "Audits of States, Local Governments, and Non-Profit Organizations").

4.5.3.3. A subaward may be provided through any legal agreement, including an agreement that

the recipient or a subrecipient considers a contract.

4.5.4. Subrecipient means an entity that:

4.5.4.1. Receives a subaward from the recipient under this award; and

4.5.4.2. Is accountable to the recipient for the use of the Federal funds provided by the subaward.

4.5.5. Total compensation means the cash and noncash dollar value earned by the executive during the recipient's or subrecipient's preceding fiscal year and includes the following (for more information see 17 CFR 229.402(c)(2)):

4.5.5.1. Salary and bonus.

4.5.5.2. Awards of stock, stock options and stock appreciation rights. Use the dollar amount recognized for financial statement reporting purposes with respect to the fiscal year in accordance with the Statement of Financial Accounting Standards No. 123 (Revised 2004) (FAS 123R), Shared Based Payments.

4.5.5.3. Earnings for services under non-equity incentive plans. This does not include group life, health, hospitalization or medical reimbursement plans that do not discriminate in favor of executives, and are available generally to all salaried employees.

4.5.5.4. Change in pension value. This is the change in present value of defined benefit and actuarial pension plans.

4.5.5.5. Above-market earnings on deferred compensation which is not tax-qualified.

4.5.5.6. Other compensation, if the aggregate value of all such other compensation (e.g. severance, termination payments, value of life insurance paid on behalf of the employee, perquisites or property) for the executive exceeds \$10,000.

5. Management Fees

5.1 Management fees or similar charges in excess of the direct costs and approved indirect rates are not allowable. The term "management fees or similar charges" refers to expenses added to the direct costs in order to accumulate and reserve funds for ongoing business expenses; unforeseen liabilities; or for other similar costs that are not allowable under this assistance agreement. Management fees or similar charges may not be used to improve or expand the project funded under this agreement, except to the extent authorized as a direct cost of carrying out the scope of work.

6. Procurements Standards

6.1 The recipient (or Subrecipient) agrees to conduct all procurement actions under this assistance agreement in accordance with the procurement standards set forth in the Procurement Standards of 2 CFR 200 Subpart D (200.317 through 200.326). No assistance agreement funds shall be used to reimburse the Federal share of any procurement action found to be in noncompliance with the procurement standards. Any costs incurred by the recipient under contracts and/or small purchases that the Federal agency determines to be in noncompliance with Federal procurement standards shall be unallowable for Federal reimbursement . In addition:

6.1.1 In accordance with the Procurement Standards of 2 CFR 200 Subpart D (200.317 through 200.326), for each proposed procurement with a threshold of \$150,000 or more that is to be awarded without competition, prior to contract execution the recipient shall provide the following documentation to the Project Officer for review:

6.1.1.1 Justification of the single source procurement and how the procurement is permissible under the recipient's written procurement procedures;

6.1.1.2 A copy of the cost or price analysis;

6.1.1.3 Basis for selection;

6.1.1.4 A copy of the proposed contract; and

6.1.1.5 Basis for award cost or price.

6.1.2 In accordance with the Procurement Standards of 2 CFR 200 Subpart D (200-317 through 200.326), for each proposed competitive procurement with a threshold of \$150,000 or more, prior to contract execution, the recipient shall provide the following documentation to the Project Officer for review:

6.1.2.1 A copy of the solicitation announcement;

6.1.2.2 A copy of the cost or price analysis;

6.1.2.4 Basis for selection;

6.1.2.4 A copy of the proposed contract; and

6.1.2.5 Basis for award cost or price.

7. **Uniform Guidance Audits:** If the Contractor is any type of U.S organization and its expends an aggregate of \$750,000 or more from all Federal sources in a fiscal year, it is subject to a special audit as detailed in 2 C.F.R. Part 200, Subpart F, "Audit Requirements" which it will need to understand and comply with, in addition to other applicable Federal regulations. The above statement includes, but is not limited to, the following specific acts, as applicable.

7.1.1. REMEDIES. Contracts for more than the simplified acquisition threshold currently set at \$250,000, which is the inflation-adjusted amount determined by the Civilian Agency Acquisition Council and the Defense Acquisition Regulations Council (Councils) as authorized by 41 U.S.C. 1908, must address administrative, contractual, or legal remedies in instances where Consultants violate or breach contract terms, and provide for such sanctions and penalties as appropriate.

7.1.2. TERMINATION. All contracts in excess of \$10,000 must address termination for cause and convenience by the non-Federal entity including the manner by which it will be effected and the basis for settlement.

- 7.1.3. EQUAL EMPLOYMENT OPPORTUNITY. Except as otherwise provided under 41 CFR Part 60, **all contracts that meet the definition of “Federally assisted construction contract” in 41 CFR Part 60-1.3** must include the equal opportunity clause provided under 41 CFR 60-1.4(b), in accordance with Executive Order 11246, “Equal Employment Opportunity” (30 FR 12319, 12935, 3 CFR Part, 1964-1965 Comp., p. 339), as amended by Executive Order 11375, “Amending Executive Order 11246 Relating to Equal Employment Opportunity,” and implementing regulations at 41 CFR part 60, “Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor.”
- 7.1.4. DAVIS-BACON ACT, as amended (40 U.S.C. 3141-3148). **When required by Federal program legislation, all prime construction contracts in excess of \$2,000** awarded by non-Federal entities must include a provision for compliance with the Davis- Bacon Act (40 U.S.C. 3141-3144, and 3146-3148) as supplemented by Department of Labor regulations (29 CFR Part 5, “Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction”). Per the statute, Consultants must be required to pay wages to laborers and mechanics at a rate not less than the prevailing wages specified in a wage determination made by the Secretary of Labor. In addition, Consultants must be required to pay wages not less than once a week. The non- Federal entity must place a copy of the current prevailing wage determination issued by the Department of Labor in each solicitation. The decision to award a contract or subcontract must be conditioned upon the acceptance of the wage determination. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency. The contracts must also include a provision for compliance with the Copeland “Anti-Kickback” Act (40 U.S.C. 3145), as supplemented by Department of Labor regulations (29 CFR Part 3, “Consultants and subconsultants on Public Building or Public Work Financed in Whole or in Part by Loans or Grants from the United States”). The Act provides that each Consultant or subrecipient must be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he or she is otherwise entitled. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency.
- 7.1.5. CONTRACT WORK HOURS AND SAFETY STANDARDS ACT (40 U.S.C. 3701- 3708). **Where applicable, all contracts awarded by the non-Federal entity in excess of \$100,000 that involve the employment of mechanics or laborers** must include a provision for compliance with 40 U.S.C. 3702 and 3704, as supplemented by Department of Labor regulations (29 CFR Part 5). Under 40 U.S.C. 3702 of the Act, each Consultant, must be required to compute the wages of every mechanic and laborer on the basis of a standard work week of 40 hours. Work in excess of the standard work week is permissible provided that the worker is compensated at a rate of not less than one and a half times the basic rate of pay

for all hours worked in excess of 40 hours in the work week. The requirements of 40 U.S.C. 3704 apply to construction work and provide that no laborer or mechanic must be required to work in surroundings or under working conditions which are unsanitary, hazardous or dangerous. These requirements do not apply to the purchases of supplies or materials or articles ordinarily available on the open market, or contracts for transportation or transmission of intelligence.

- 7.1.6. RIGHTS TO INVENTIONS MADE UNDER A CONTRACT OR AGREEMENT. If the Federal award meets the definition of “funding agreement” under 37 CFR §401.2 (a) and the recipient or subrecipient wishes to enter into a contract with a small business firm or nonprofit organization regarding the substitution of parties, assignment or performance of experimental, developmental, or research work under that “funding agreement,” the recipient or subrecipient must comply with the requirements of 37 CFR Part 401, “Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements,” and any implementing regulations issued by the awarding agency.**
- 7.1.7. CLEAN AIR ACT (42 U.S.C. 7401-7671q.) and the FEDERAL WATER POLLUTION CONTROL ACT (33 U.S.C. 1251-1387), as amended—Contracts and subgrants of amounts in excess of \$150,000** must contain a provision that requires the non-Federal award to agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 U.S.C. 7401-7671q) and the Federal Water Pollution Control Act as amended (33 U.S.C. 1251-1387). Violations must be reported to the Federal awarding agency and the Regional Office of the Environmental Protection Agency (EPA).
- 7.1.8. ENERGY EFFICIENCY.** Mandatory standards and policies relating to energy efficiency which are contained in the state energy conservation plan issued in compliance with the Energy Policy and Conservation Act (42 U.S.C. 6201).
- 7.1.9. DEBARMENT AND SUSPENSION.** (Executive Orders 12549 and 12689)—A contract award (see 2 CFR 180.220) must not be made to parties listed on the governmentwide Excluded Parties List System in the System for Award Management(SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (3 CFR Part 1986 Comp., p. 189) and 12689 (3 CFR Part 1989 Comp., p. 235), “Debarment and Suspension.” The Excluded Parties List System in SAM contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.
- 7.1.10. BYRD ANTI-LOBBYING AMENDMENT (31 U.S.C. 1352)—**Consultants that apply or bid for an award of \$100,000 or more must file the required certifications. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer

or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. 1352. Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award.

- 7.1.11. PROCUREMENT OF RECOVERED MATERIALS.** A non-Federal entity that is a state agency or agency of a political subdivision of a state and its Consultants must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds \$10,000 or the value of the quantity acquired by the preceding fiscal year exceeded \$10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery, and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines.
- 7.1.12. DEBARMENT AND SUSPENSION.** Furthermore, the Consultant certifies that to the best of its knowledge and belief, that it and its principals are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency.
- 7.1.13. BID GUARANTEES AND BONDS.** In accordance with § 200.325 for construction or facility improvement contracts or subcontracts exceeding the Simplified Acquisition Threshold, the Federal awarding agency or pass-through entity may accept the bonding policy and requirements of the non-Federal entity provided that the Federal awarding agency or pass-through entity has made a determination that the Federal interest is adequately protected. If such a determination has not been made, the minimum requirements must be as follows:
- a. A bid guarantee from each bidder equivalent to five percent of the bid price. The “bid guarantee” must consist of a firm commitment, such as a bid bond, certified check, or other negotiable instrument accompanying a bid as assurance that the bidder will, upon acceptance of the bid, execute such contractual documents as may be required within the time specified.
 - b. A performance bond on the part of the Consultant for 100 percent of the contract price. A “performance bond” is one executed in connection with a contract to secure fulfillment of all the Consultant's obligations under such contract.
 - c. A payment bond on the part of the Consultant for 100 percent of the contract price. A “payment bond” is one executed in connection with a contract to assure payment as required by law of all persons supplying

labor and material in the execution of the work provided for in the contract.

7.1.14. CONTRACTING WITH SMALL AND MINORITY-OWNED BUSINESSES. In accordance with § 200.321 “Contracting with small and minority businesses, women's business enterprises, and labor surplus area firms,” if subcontracts are to be let, the prime Consultant agrees to take affirmative steps such as those listed in paragraphs (1) through (5) of this section.

- a. Placing qualified small and minority businesses and women's business enterprises on solicitation lists;
- b. Assuring that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources;
- c. Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses, and women's business enterprises;
- d. Establishing delivery schedules, where the requirement permits, which encourage participation by small and minority businesses, and women's business enterprises;
- e. Using the services and assistance, as appropriate, of such organizations as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

7.1.15 PROHIBITION ON CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. In accordance with § 200.216, recipients and subrecipients are prohibited from obligating or expending loan or grant funds to: Procure or obtain; Extend or renew a contract to procure or obtain; or Enter into a contract (or extend or renew a contract) to procure or obtain equipment, services, or systems that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. As described in Public Law 115-232, section 889, covered telecommunications equipment is telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities).

- a. For the purpose of public safety, security of government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities).
- b. Telecommunications or video surveillance services provided by such entities or using such equipment.

- c. Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of the National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.
- d. In implementing the prohibition under Public Law 115-232, section 889, subsection (f), paragraph (1), heads of executive agencies administering loan, grant, or subsidy programs shall prioritize available funding and technical support to assist affected businesses, institutions and organizations as is reasonably necessary for those affected entities to transition from covered communications equipment and services, to procure replacement equipment and services, and to ensure that communications service to users and customers is sustained.

7.1.16 DOMESTIC PREFERENCES FOR PROCUREMENTS. In accordance with § 200.322, as appropriate and to the extent consistent with law, the non-Federal entity should, to the greatest extent practicable under a Federal award, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States (including but not limited to iron, aluminum, steel, cement, and other manufactured products). The requirements of this section must be included in all subawards including all contracts and purchase orders for work or products under this award. For purposes of this section:

- a. “Produced in the United States” means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.
- b. “Manufactured products” means items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber.

Provision	Citation
Recipient Termination	2 CFR Part 200 Appendix II
Equal Employment Opportunity	E.O. 11246, "Equal Employment Opportunity," as amended by E.O. 11375, "Amending Executive Order 11246 Relating to Equal Employment Opportunity," and as supplemented by regulations at 41 CFR part 60, "Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor."

Clean Air Act	42 U.S.C. 7401
Federal Water Pollution Control Act	33 U.S.C. 1251
Energy Efficiency	2 CFR Part 200 Appendix II
Copeland “Anti- Kickback” Act	18 U.S.C. 874 and 40 U.S.C. 276C
Byrd Anti-Lobbying Amendment	31 U.S.C. 1352
Debarment and Suspension	Executive Orders 12549 and 12689
Recycling	2 CFR Part 200 Appendix II
Davis-Bacon Act	40 U.S.C. 276a to a-7
Contract Work Hours and Safety Standards Act	40 U.S.C. 327-333
Rights to Inventions Made Under a Contract or Agreement	37 CFR part 401
Contractor Breach Clause	2 CFR Part 200 Appendix II
Prohibition on Certain Telecommunications and Video Surveillance Services and Equipment	2 CFR Part 200 Subpart C; Public Law 115-232 section 889
Procurement of Recovered Materials	2 CFR Part 200 Property Standards; section 6002 of the Solid Waste Disposal Act
Domestic Preferences for Procurements	2 CFR Part 200 Property Standards

APPENDIX C—BUDGET

Project Budget by Year				
Organization Name:	City of Cheyenne			
Project Name:	Protecting Source Water & Reducing Wildfire Risk for Rural Communities: An Innovative Finance Pilot in Wyoming			
<i>This form only includes funds requested from the Endowment under this project; do not include outside funds. Matching funds (if applicable) will go on Tab 2.</i> <i>Only complete budget years applicable to your performance period (e.g., Year 1 and 2 for two years of funding under this grant).</i> <i>Please upload your Negotiated Indirect Cost Rate Agreement (if applicable) to the grantee portal.</i>				
Project Budget by Year				
Category	Year 1	Year 2	Year 3	Total
Personnel	\$ 4,530.19	\$ 2,125.93	\$ -	\$ 6,656.12
Fringe Benefits	\$ 2,832.73	\$ 1,329.34	\$ -	\$ 4,162.07
Travel	\$ 5,400.00	\$ 1,800.00	\$ -	\$ 7,200.00
Equipment (> \$5,000)*	\$ -	\$ -	\$ -	\$ -
Supplies	\$ -	\$ -	\$ -	\$ -
Contractual	\$ 82,300.00	\$ 117,300.00	\$ -	\$ 199,600.00
Other	\$ 14,400.00	\$ 4,800.00	\$ -	\$ 19,200.00
Subtotal/Direct Costs Only	\$ 109,462.92	\$ 127,355.27	\$ -	\$ 236,818.18
Modified Total Direct Costs (MTDC)**	\$ 66,894.92	\$ 64,923.27	\$ -	\$ 131,818.18
Indirect %	10.0%	10.0%	10.0%	10.0%
Indirect Costs***	\$ 6,689.49	\$ 6,492.33	\$ -	\$ 13,181.82
Total	\$ 116,152.41	\$ 133,847.59	\$ -	\$ 250,000.00
Budget Narrative: <i>(Describe how funds will be used in each category of the above table)</i> Personnel - Salaries of City of Cheyenne staff working on delivering the outputs and outcomes of the project. This includes an intern, Cheyenne Fire Rescue Wildland Coordinator, and two crew Fringe benefits - Employer-paid medical and dental insurance, leave, payroll taxes, disability, etc. for City of Cheyenne staff working on the project. Travel - This includes transportation, hotel, meals, and related expenses for City of Cheyenne staff travel incurred for project activities. Equipment- N/A Supplies - N/A Contractual - \$35,000 in legal fees for contracts (estimate 5 contracts with 2-3 days per contract at \$300/hour), NFF subgrant (\$110k for Community Coordinator as Encampment is unable to host a position due to capacity constraints), WRI subgrant (\$45k for WRI staff time and travel costs), Laramie County Fire Subgrant (\$9,600 for Laramie Country Fire staff time and travel costs) Other - 8 workshops at \$2,400 each (includes venue, participant travel, food, supplies), City of Chayenne other direct costs				

***Please see the Endowment's Indirect Cost Rate Policy for details.